
REQUEST FOR FACILITATED DISPUTE RESOLUTION

TO Todd Albert, Public Records Advocate

CC Yufeng Luo, Deputy Public Records Advocate; OPRD Commission; Governor Tina Kotek; Cameron D. Miles, Government Accountability Attorney, Office of the Governor; Oregon Department of Justice, Public Records Orders

FROM Robert Samuel White, P.O. Box 334, Reedsport, Oregon 97467

DATE October 8, 2026

RE Request for Facilitated Dispute Resolution: Office of the Governor (request of September 5, 2026)

TESTIMONY [v1.11](#)

AI DISCLOSURE [How this record is made.](#)

Mr. Albert,

I request facilitated dispute resolution under ORS 192.464(2)(b).

On September 5, 2026, I filed a public records request with the Office of Governor Tina Kotek.¹ It asked for a fee waiver: “I request a waiver under ORS 192.324(5). Disclosure primarily benefits the general public.”¹ Yasmin Solorio acknowledged the request for the office on September 8.² On September 22, Cameron D. Miles, Government Accountability Attorney, estimated the cost at \$572.50 and wrote: “your request for a fee waiver is denied.”³

I petitioned the Attorney General on September 24.⁴ The same day, Deputy Attorney General Benjamin Gutman dismissed the petition: “Because your petition seeks records in the custody of the Governor, an elected official, we lack jurisdiction to consider your appeal and must respectfully dismiss your petition.”⁵ On September 25, I filed a second petition, which challenged the fee waiver denial alone.⁶ On October 1, he dismissed it: “we lack jurisdiction to consider your appeal and must respectfully dismiss your petition.”⁷

ORS 192.464 applies to a person seeking records from a state agency who “has been denied a fee waiver or reduction in fees after asserting under ORS 192.324 (5) that a fee waiver or reduction of fees is in the public interest.” ORS 192.311(6) defines a state agency to include “any state officer.” ORS 192.464 contains no exception for elected officials.

The request, the fee waiver denial, both petitions, and both dismissals are published in full at oprdivolunteerabuse.org/records/governor/.

Respectfully,

Robert Samuel White

Sources

1. [Public records request to the Office of the Governor, September 5, 2026.](#)
2. [The Governor’s office begins gathering records, September 8, 2026.](#)
3. [The fee waiver is denied: \\$572.50, September 22, 2026.](#)

4. Petition for a Public Records Order, September 24, 2026.
5. Attorney General's order, DOJ File No. 121010-GA0187-26, September 24, 2026.
6. Second petition for a Public Records Order, September 25, 2026.
7. Attorney General's order, DOJ File No. 121010-GA0187-26, October 1, 2026.